

ORDINANCE NO. A 23

TOWN OF DECATUR, MISSISSIPPI

**AN ORDINANCE OF THE TOWN OF DECATUR,
MISSISSIPPI, ESTABLISHING A REASONABLE CURFEW
FOR SAID TOWN, REQUIRING ALL PERSONS TO BE OFF
THE STREETS OF SAID TOWN BY A CERTAIN HOUR,
AND MATTERS RELATED THERETO.**

WHEREAS, the Mayor and Board of Aldermen of the Town of Decatur, Mississippi, have carefully considered the matter of establishing a reasonable curfew for said Town, requiring all persons to be off of the streets and sidewalks of said Town by a certain hour, and

WHEREAS, it has been brought to the attention of the Mayor and Board of Alderman that a number of people have been using the streets and sidewalks of the Town of Decatur, at unreasonably late hours of the night, and

WHEREAS, this Board is of the opinion that it is not necessary for the streets and sidewalks of said Town to be used by the citizens of the Town of Decatur at unreasonably late hours, except for legitimate and reasonable purposes, and

WHEREAS, the Board is of the further opinion that a reasonable curfew imposed upon the citizens of said Town, in regard to the use of streets and sidewalks, is a legitimate exercise of power of this Board, and that it would be to the best interest of the citizens of the Town of Decatur for such a reasonable curfew to be imposed by an ordinance, NOW THEREFORE

BE IT ORDAINED BY THE MAYOR AND BOARD OF ALDERMEN OF THE TOWN OF DECATUR, MISSISSIPPI,

SECTION 1. That the statements heretofore made in the preamble of this ordinance are hereby declared and adjudicated to be true and correct as stated.

SECTION 2. That from and after the effective date of this ordinance it shall be unlawful for any person or persons to use the streets or sidewalks of the Town of Decatur, Mississippi, except as may be hereinafter provided, after the hour of Eleven (11) O'clock P. M., provided however, this curfew shall not apply to any person or persons who shall use the streets or sidewalks of said Town in going to or from his or her place of residence or for any legitimate or necessary purpose.

SECTION 3. That the curfew herein imposed is ordained for the purpose of requiring all persons to be off of the streets of said Town of Decatur, where such persons do not have any legitimate or reasonable excuse for being thereon, and to prevent said sidewalks and streets from being used for loitering purposes, and to prevent any unnecessary disturbances or breaches of the peace.

SECTION 4. That the violation of this ordinance shall be considered a misdemeanor. Any persons who shall be found guilty of violating this ordinance shall, upon conviction, be fined not

more than the sum of One Hundred Dollars (\$100.00), or imprisoned in the Town Jail for not more than thirty (30) days, or by both such fine and imprisonment.

SECTION 5. That this ordinance shall take effect and be in force from and after the 15th day of September, 1964; this ordinance shall be posted in the manner provided by law in not less than 3 public places in the Town of Decatur,

ADOPTED, this the 4th day of August, 1964.